

IN THE COURT OF APPEAL (CIVIL DIVISION)

Case No: CA-2022-004921

BETWEEN:

MS RACHEL THOMPSON

Appellant

- and -

CLEARVIEW CREDIT SERVICES LTD

Respondent

RESPONDENT'S SKELETON ARGUMENT

A. INTRODUCTION

1. The Respondent denies liability and contends that it processed data lawfully, that any inaccuracies were promptly corrected upon notification, and that the Appellant has not established cognizable damage.

B. RELEVANT FACTS

2. The Respondent received the CCJ information from an authorised source and had no reason to doubt its accuracy.

3. Upon receiving the Appellant's dispute, the Respondent commenced an investigation in accordance with its procedures.

4. The correction was made within a reasonable timeframe given the complexity of verifying the error.

5. The Respondent has appropriate data quality procedures in place.

6. The mortgage refusal may have been attributable to other factors.

C. LEGAL FRAMEWORK

7. The relevant statutory provisions are:

- Data Protection Act 2018
- UK General Data Protection Regulation
- Consumer Credit Act 1974

D. SUBMISSIONS

8. The Respondent processed data lawfully and had appropriate accuracy procedures.

9. The Respondent responded appropriately once notified of the alleged inaccuracy.
10. The Appellant has not established that the data error caused the mortgage refusal.
11. Any distress suffered does not meet the threshold for compensation.

E. AUTHORITIES

12. The following authorities are relied upon:

- Warren v DSG Retail Ltd [2021] EWHC 2168 (QB)
- Rolfe v Veale Wasbrough Vizards LLP [2021] EWHC 2809 (QB)
- Johnson v Eastlight Community Homes Ltd [2021] EWHC 3069 (QB)

F. RELIEF SOUGHT

13. The Respondent respectfully requests that this Court:

- Dismiss the claim
- Alternatively, compensation limited to £1,000
- Costs

Catherine Thompson KC

Michael Edwards

30 November 2024

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